2017 Y L R Note 224

[Lahore (Rawalpindi Bench)]

Before Ch. Muhammad Masood Jahangir, J

Mst. GULAB JAN and 6 others---Petitioners

Versus

RDA through Director, Land Development and Estate Management, Rawalpindi and 5 others---Respondents

C.R. No.167 of 2007, heard on 16th April, 2015.

(a) Land Acquisition Act (I of 1894)---

----S. 4--- Town Improvement Act (IV of 1922), Preamble--- Award, finality of--- Notification for acquisition of land was issued by acquiring department in year 1961--- Property was acquired under the Town Improvement Act, 1922--- Initial award had been announced in year 1978--- Supplementary award was also announced by Land Acquisition Collector in year 1983 and compensation was paid to land owners---Such proceedings had attained finality when no reference challenging the award was filed by any of the aggrieved persons. [Para. 5 of the judgment]

(b) Civil Procedure Code (V of 1908)---

----O. XXXIX, Rr.1 & 2---Stay of proceedings---Scope---High Court directed the courts below not to stay proceedings in cases until a specific order to stop proceedings of Trial Court was not issued--- Registrar of High Court was directed to circulate copy of present judgment to all Judicial Officers working within jurisdiction of High Court that until proceedings of courts below were not stopped through a specific order, the same would continue with proceedings of lis--- Mere pendency of any matter before High Court against interlocutory order would not be taken as an automatic bar to continue normal proceedings of main lis--- If proceedings of any lis were found to be stayed/adjourned sine die without any specific order passed by superior court, such cases would be stream lined to normal proceedings. [Para. 7 of the judgment]

Malik Sardar Khan, Vice Counsel for Petitioners.

Sh. Muhammad Suleman, Mirza Muhammad Asif Abbas for Respondent No.4 and Kashif Ali Malik for Respondent No.1.

Date of hearing: 16th April, 2015.

JUDGMENT

CH. MUHAMMAD MASOOD JAHANGIR, J.---By filing the instant civil revision, the petitioners have challenged the order dated 3.7.2006 and judgment dated 21.12.2006 by virtue of which both the courts below concurrently dismissed the application under Order XXXIX, Rules 1 and 2, C.P.C. for grant of temporary injunction filed by petitioners in their suit for declaration and permanent injunction.

2. The facts of the case are that petitioners being plaintiffs filed a suit for declaration and permanent injunction before the learned trial court with the assertions that they were owners of the disputed property and the respondents after carving out plots thereon were bent upon to auction the said property. It is also alleged that the petitioners earlier filed a suit for permanent injunction against the respondents/defendants and an injunctive order was granted in the said suit by competent court of law but in violation of said order fictitious auction proceedings were conducted and disputed plots were given to the present respondents Nos.2 to 6 and when they tried to take over its possession, the plaintiffs/petitioners were constrained to file the instant suit. Along with the

said suit the petitioners also filed an application for grant of ad interim injunction. The suit as well as application under Order XXXIX, Rules 1 and 2, C.P.C. was contested by the respondents/ defendants and ultimately the said application as well as appeal were dismissed by the courts below vide order and judgment referred in para-1 ante. Hence the instant civil revision.

3. Today on call Malik Sardar Khan, Advocate proxy counsel appeared on behalf of the principal counsel for the petitioners and made a request for an adjournment on account of his personal engagement. The instant civil revision arising out of an interlocutory order is pending since 2007 and suit pending before the learned trial court has also not been decided by the learned trial court on account of pendency of instant civil revision. The request for adjournment is declined as the cases cannot be kept pending for indefinite period on the whims and desires of the parties without any plausible cause, therefore the request for adjournment is declined.

4. Arguments of learned counsel for the respondents heard and record as well as ground urged in the civil revision perused.

5. There is no denial that a notification for acquisition of the land was issued by the acquiring department in the year 1961 and under the said proceedings, the property including the suit land was also acquired under Town Improvement Act, 1922 and in due compliance of the provisions of Act ibid an initial award had been announced in the year 1978 whereas supplementary award was also announced by the Land Acquisition Collector, Rawalpindi in the year 1983 and the Compensation was paid to the land owners. The said proceedings had attained finality when no reference challenging the award was filed by any of the aggrieved person. In due process of law a mutation No.335 had also been sanctioned regarding the acquired property and the petitioners were left with no ownership regarding any inch of the suit property. Even the petitioners had never assailed the said mutation No.335 before any appropriate forum. Thereafter as per scheme the Authority carved out the plots on the acquired land and the disputed plots were auctioned by respondent No.1 in favour of respondents Nos.2 to 6 in due performance of its public duties. At an early stage the petitioners filed a civil suit and obtained an injunctive order, but the said suit was dismissed as withdrawn. However, prior to its withdrawal, the instant suit was filed and ad interim injunctive order initially was granted to the petitioners, but when the facts were argued by the parties before the learned trial court, the same was recalled and application under Order XXXIX, Rules 1 and 2, C.P.C. was dismissed and the appeal also met the same fate by the courts below.

6. The petitioners are neither owner of the disputed property nor in possession of the same and there exists no title document in favour of the petitioners, who are unable to make out a prima facie case in their favour. The other two ingredients i.e. balance of inconvenience and irreparable also do not tilt in favour of the petitioners. Both the courts below have rightly passed the impugned order/judgment on the valid reasons, which are not open to any exception by this Court in the exercise of revisional jurisdiction. The instant civil revision being devoid of any merits is dismissed.

7. Before parting with this order, it is sad to note that time and again this Court has specifically issued direction to the courts below not to stay proceedings in the cases until a specific order to stop the proceedings of the learned trial court is not issued, but unfortunately these directions are not being complied with by the Judicial Officers and in future such a practice will not be tolerated. The Registrar of this Court is directed to circulate copy of this judgment to all the Judicial Officers working within the jurisdiction of this Court that until the proceedings of the courts below are not stopped through a specific order, they will continue with the proceedings of the lis and mere pendency of any matter before this Court against the interlocutory order will not be taken as an automatic bar to discontinue the normal proceedings of the main lis. The learned District and Sessions Judges in the Punjab in their first monthly meeting to be convened in May, 2015 will require the Judicial Officers working under their control to prepare a list of cases/detailed report that in which cases the proceedings of the suit are stayed or no further step is being taken by the Court seized of the same on account of pendency of any lis before this Court. If the proceedings of any lis are found to be stayed/adjourned sine die without any specific order passed by the superior Court in this regard and such cases will be stream lined to the normal proceedings. Moreover, list of such cases wherein the proceedings have been stayed by this Court will be forwarded to the

Registrar of this Court, who will ensure that the said list is annexed with the respective case files, so that the same may be given preference.

RR/G-23/L Order accordingly.